

1 AN ACT relating to the Kentucky Fire Commission, making an appropriation
2 therefor, and declaring an emergency.

3 ***Be it enacted by the General Assembly of the Commonwealth of Kentucky:***

4 ➔Section 1. KRS 95A.020 is amended to read as follows:

5 (1) As used in this section, "chief fire officer" means an individual who plays an
6 essential role in the administrative structure of his or her fire department.

7 (2) There is hereby created the Kentucky Fire Commission, hereinafter called
8 "commission," which shall be attached to the Kentucky Community and Technical
9 College System for administrative purposes only.

10 (3) (a) The commission shall include male, female, and racial minority
11 representation.

12 (b) No more than three (3) appointed members shall reside in the same
13 congressional district.

14 (4) The commission shall be composed of **eighteen (18)**~~fourteen (14)~~ members **who**
15 **are**~~are~~ residents of the State of Kentucky~~and~~ and appointed by the Governor, **as**
16 **applicable**. These members should be persons well qualified by experience or
17 education in the field of fire protection or related fields.

18 (5) The membership of the commission shall include:

19 (a) One (1) member of a fire department formed under KRS Chapter 75 or 273
20 who is:

- 21 1. Not a chief fire officer;
- 22 2. Not a career employee of any department other than the one from which
23 he or she is nominated; and
- 24 3. Selected from a list of at least three (3) names submitted by the
25 Kentucky Firefighters Association;

26 (b) One (1) member of a volunteer fire department who is:

- 27 1. Not a chief fire officer;

- 1 2. Not a career employee of any fire department other than the one from
- 2 which he or she is nominated; and
- 3 3. Selected from a list of at least three (3) names submitted by the
- 4 Kentucky Firefighters Association;
- 5 (c) One (1) member of a fire department formed under KRS Chapter 95 selected
- 6 from a list of at list three (3) names submitted by the Kentucky Professional
- 7 Firefighters;
- 8 (d) One (1) chief fire officer of a paid fire department selected from a list of at
- 9 least three (3) names submitted by the Kentucky Association of Fire Chiefs;
- 10 (e) One (1) licensed physician with experience in emergency medicine;
- 11 (f) A chief fire officer of a volunteer fire department who is not a career member
- 12 of any other department, selected from a list of at least three (3) names
- 13 submitted by the Kentucky Association of Fire Chiefs;
- 14 (g) One (1) member of a fire department formed under KRS Chapter 67 or 75, or
- 15 a fire department in a county containing an urban-county government created
- 16 pursuant to KRS Chapter 67A, who is selected from a list of at least three (3)
- 17 names submitted by the Kentucky Professional Firefighters;
- 18 (h) The director of Homeland Security or his or her designee;
- 19 (i) One (1) mayor or other officer of a Kentucky city providing fire services
- 20 under KRS Chapter 95 selected from a list of at least three (3) names
- 21 submitted by the Kentucky League of Cities;
- 22 (j) One (1) county judge/executive or other officer of a Kentucky county selected
- 23 from a list of at least three (3) names submitted by the Kentucky Association
- 24 of Counties;
- 25 (k) One (1) representative of a Kentucky building, industry, or safety association;
- 26 (l) One (1) representative of the general public who is not an employee of any
- 27 government or governmental agency;

1 (m) The state fire marshal or his or her designee;~~and~~

2 (n) One (1) officer of a fire-based emergency medical service selected from a list
3 of at least three (3) names submitted by the executive director of the Kentucky
4 Board of Emergency Medical Services;

5 (o) The president of the Kentucky Community and Technical College System or
6 his or her designee;

7 (p) The president of the Kentucky Firefighters Association or his or her
8 designee;

9 (q) The president of the Kentucky Professional Firefighters or his or her
10 designee; and

11 (r) The president of the Kentucky Association of Fire Chiefs or his or her
12 designee.~~]~~

13 ~~(6) The vice president of administrative services of the Kentucky Community and~~
14 ~~Technical College System, president of the Kentucky Firefighters Association,~~
15 ~~president of the Kentucky Professional Firefighters, and president of the Kentucky~~
16 ~~Association of Fire Chiefs, or their designees, shall serve as nonvoting ex officio~~
17 ~~members of the commission.]~~

18 ~~(6)~~~~[(7)]~~ The members of the commission who are firefighters shall possess a
19 minimum of five (5) years of fire service experience and shall be certified with the
20 following:

21 (a) One hundred fifty (150) hours of training for volunteer firefighters; or

22 (b) Four hundred (400) hours of training for professional firefighters.

23 ~~(7)~~~~[(8)]~~ The Kentucky Firefighters Association, Kentucky Professional Firefighters,
24 Kentucky Association of Fire Chiefs, Kentucky Board of Emergency Medical
25 Services Association, Kentucky League of Cities, and Kentucky Association of
26 Counties shall submit their lists of nominees by November 15 of each year as
27 vacancies occur.~~]~~

1 ~~(9) The Governor shall appoint members of the commission to staggered terms~~
2 ~~not to exceed four (4) years. However, initial appointments shall be appointed~~
3 ~~as follows:~~

4 ~~(a) Four (4) members shall serve for two (2) year terms ending November 30,~~
5 ~~2021;~~

6 ~~(b) Five (5) members shall serve three (3) year terms ending November 30, 2022;~~
7 ~~and~~

8 ~~(c) Five (5) members shall serve four (4) year terms ending November 30, 2023.]~~

9 **(8) (a)**~~[(10)]~~ After the expiration of the initial appointments, Appointive members
10 shall be appointed **by the Governor under subsection (5)(a) to (g), (i) to (l),**
11 **and (n) of this section** for a term of four (4) years.

12 **(b) The terms of the members set out in subsection (5)(h), (m), and (o) to (r) of**
13 **this section shall be concurrent with the term of office by which the member**
14 **is serving.**

15 **(c)** Any member chosen by the Governor to fill a vacancy created otherwise than
16 by expiration of term shall be appointed for the unexpired term of the member
17 he or she is chosen to succeed.

18 ~~**(9)**[(11)]~~ When vacancies occur other than by expiration of term and nominations are
19 required, the Governor may request a new list or select an appointee from a
20 previously submitted list. Appointive members shall not serve more than two (2)
21 consecutive four (4) year terms.

22 **(10)**~~[(12)]~~ A majority of the voting members appointed to the commission shall
23 constitute a quorum. The commission shall:

24 (a) Meet at least four (4) times per year upon call of the chair, or upon the written
25 request of any five (5) members; and

26 (b) Annually elect a chair, vice chair, and secretary in accordance with KRS
27 95A.030.

1 ~~(11)~~~~(13)~~ A member of the commission who misses three (3) regular meetings, without
2 the approval of the chairman, in one (1) year shall be deemed to have resigned from
3 the commission and his or her position shall be deemed to be vacant. As used in this
4 subsection, a "year" begins when the first meeting is missed and ends three hundred
5 sixty-five (365) days later or when the third meeting is missed, whichever occurs
6 first. The Governor shall appoint a similarly qualified person to fill the vacancy
7 within ninety (90) days of the vacancy occurring. The failure of a commission
8 member to attend a special or emergency meeting shall not result in any penalty. A
9 person removed under this subsection shall not be reappointed to the commission
10 for at least ten (10) years after removal.

11 ~~(12)~~~~(14)~~ Members of the commission shall receive no compensation for their services
12 but shall be allowed their actual and necessary expenses incurred in the
13 performance of their functions.

14 ➔Section 2. KRS 95A.262 is amended to read as follows:

15 (1) The Kentucky Fire Commission shall, in cooperation with the Cabinet for Health
16 and Family Services, develop and implement a continuing program to inoculate
17 every paid and volunteer firefighter in Kentucky against hepatitis A and B. The
18 program shall be funded from revenues allocated to the Firefighters Foundation
19 Program fund pursuant to KRS 136.392 and 42.190, not to exceed five hundred
20 thousand dollars (\$500,000) per fiscal year.

21 (2) (a) Except as provided in subsection (3) of this section, the Kentucky Fire
22 Commission shall allot on an annual basis a share of the funds accruing to and
23 appropriated for volunteer fire department aid to volunteer fire departments in
24 cities of all classes, fire protection districts organized pursuant to KRS
25 Chapter 75, county districts established under authority of KRS 67.083, and
26 volunteer fire departments created as nonprofit corporations pursuant to KRS
27 Chapter 273.

1 (b) The commission shall allot eleven thousand dollars (\$11,000) annually to
2 each qualifying department.

3 (c) Any qualifying department which fails to participate satisfactorily in the
4 Kentucky fire incident reporting system as described in KRS 304.13-380 shall
5 forfeit annually five hundred dollars (\$500) of its allotment.

6 (d) If two (2) or more qualified volunteer fire departments, as defined in KRS
7 95A.500 to 95A.560, merge after January 1, 2000, then the allotment shall be
8 in accordance with the provisions of KRS 95A.500 to 95A.560.

9 (e) Administrative regulations for determining qualifications shall be based on
10 the number of both paid firefighters and volunteer firemen within a volunteer
11 fire department, the amount of equipment, housing facilities available, and
12 any other matters or standards that will best effect the purposes of the
13 volunteer fire department aid law. A qualifying department shall:

- 14 1. Include at least twelve (12) firefighters;
- 15 2. Have a chief;
- 16 3. Have at least one (1) operational fire apparatus or one (1) on order; and
- 17 4. Have at least fifty percent (50%) of its firefighters who have completed
18 at least one-half (1/2) of one hundred fifty (150) training hours, or as
19 otherwise established by the commission under KRS 95A.240(6),
20 toward certification within the first six (6) months of the first year of the
21 department's application for certification, and there shall be a plan to
22 complete the one hundred fifty (150) training hours, or as otherwise
23 established by the commission by KRS 95A.240(6), within the second
24 year.

25 These personnel, equipment, and training requirements shall not be made
26 more stringent by the promulgation of administrative regulations.

27 (f) No allotment shall exceed the total value of the funds, equipment, lands, and

1 buildings made available to the local fire units from any source whatever for
2 the year in which the allotment is made.

3 (g) A portion of the funds provided for above may be used to purchase group or
4 blanket health insurance and shall be used to purchase workers' compensation
5 insurance, and the remaining funds shall be distributed as provided in this
6 section.

7 (3) There shall be allotted two hundred thousand dollars (\$200,000) of the insurance
8 premium surcharge proceeds accruing to the Firefighters Foundation Program fund
9 that shall be allocated each fiscal year of the biennium to the firefighters training
10 center fund, which is hereby created and established, for the purposes of
11 constructing new or upgrading existing training centers for firefighters. If any
12 moneys in the training center fund remain uncommitted, unobligated, or
13 unexpended at the close of the first fiscal year of the biennium, then such moneys
14 shall be carried forward to the second fiscal year of the biennium, and shall be
15 reallocated to and for the use of the training center fund, in addition to the second
16 fiscal year's allocation of two hundred thousand dollars (\$200,000). Prior to funding
17 any project pursuant to this subsection, a proposed project shall be approved by the
18 Kentucky Fire Commission as provided in subsection (4) of this section and shall
19 comply with state laws applicable to capital construction projects.

20 (4) Applications for funding low-interest loans and firefighters' training centers shall be
21 submitted to the Kentucky Fire Commission for their recommendation, approval,
22 disapproval, or modification. The commission shall review applications
23 periodically, and shall, subject to funds available, recommend which applications
24 shall be funded and at what levels, together with any terms and conditions the
25 commission deems necessary.

26 (5) Any department or entity eligible for and receiving funding pursuant to this section
27 shall have a minimum of fifty percent (50%) of its personnel certified as recognized

1 by the Kentucky Fire Commission.

2 (6) Upon the written request of any department, the Kentucky Fire Commission shall
3 make available a certified training program in a county of which such department is
4 located.

5 (7) The amount of reimbursement for any given year for costs incurred by the
6 Kentucky Community and Technical College System for administering these funds,
7 including but not limited to the expenses and costs of commission operations, shall
8 be determined by the commission and shall not exceed five percent (5%) of the total
9 amount of moneys accruing to the Firefighters Foundation Program fund which are
10 allotted for the purposes specified in this section during any fiscal year.

11 (8) The commission shall withhold from the general distribution of funds under
12 subsection (2) of this section an amount which it deems sufficient to reimburse
13 volunteer fire departments for equipment lost or damaged beyond repair due to
14 hazardous material incidents.

15 (9) Moneys withheld pursuant to subsection (8) of this section shall be distributed only
16 under the following terms and conditions:

17 (a) A volunteer fire department has lost or damaged beyond repair items of
18 personal protective clothing or equipment due to that equipment having been
19 lost or damaged as a result of an incident in which a hazardous material (as
20 defined in any state or federal statute or regulation) was the causative agent of
21 the loss;

22 (b) The volunteer fire department has made application in writing to the
23 commission for reimbursement in a manner approved by the commission and
24 the loss and the circumstances thereof have been verified by the commission;

25 (c) The loss of or damage to the equipment has not been reimbursed by the
26 person responsible for the hazardous materials incident or by any other
27 person;

- 1 (d) The commission has determined that the volunteer fire department does not
2 have the fiscal resources to replace the equipment;
- 3 (e) The commission has determined that the equipment sought to be replaced is
4 immediately necessary to protect the lives of the volunteer firefighters of the
5 fire department;
- 6 (f) The fire department has agreed in writing to subrogate all claims for and
7 rights to reimbursement for the lost or damaged equipment to the
8 Commonwealth to the extent that the Commonwealth provides reimbursement
9 to the department; and
- 10 (g) The department has shown to the satisfaction of the commission that it has
11 made reasonable attempts to secure reimbursement for its losses from the
12 person responsible for the hazardous materials incident and has been
13 unsuccessful in the effort.
- 14 (10) If a volunteer fire department has met all of the requirements of subsection (9) of
15 this section, the commission may authorize a reimbursement of equipment losses
16 not exceeding ten thousand dollars (\$10,000) or the actual amount of the loss,
17 whichever is less.
- 18 (11) Moneys which have been withheld during any fiscal year which remain unexpended
19 at the end of the fiscal year shall be distributed in the normal manner required by
20 subsection (2) of this section during the following fiscal year.
- 21 (12) No volunteer fire department may receive funding for equipment losses more than
22 once during any fiscal year.
- 23 (13) The commission shall make reasonable efforts to secure reimbursement from the
24 responsible party for any moneys awarded to a fire department pursuant to this
25 section.
- 26 (14) The commission, in accordance with the procedures in subsection (4) of this
27 section, may make low-interest loans, and the interest thereon shall not exceed three

1 percent (3%) annually or the amount needed to sustain operating expenses of the
2 loan fund, whichever is less, to volunteer fire departments for the purposes of major
3 equipment purchases and facility construction. Loans shall be made to departments
4 which achieve the training standards necessary to qualify for volunteer fire
5 department aid allotted pursuant to subsection (2) of this section, and which do not
6 have other sources of funds at rates which are favorable given their financial
7 resources. The proceeds of loan payments shall be returned to the loan fund for the
8 purpose of providing future loans. If a department does not make scheduled loan
9 payments, the commission may withhold any grants payable to the department
10 pursuant to subsection (2) of this section until the department is current on its
11 payments. Money in the low-interest loan fund shall be used only for the purposes
12 specified in this subsection. Any funds remaining in the fund at the end of a fiscal
13 year shall be carried forward to the next fiscal year for the purposes of the fund.

14 (15) Each fiscal year there shall be allotted one million dollars (\$1,000,000) from the
15 fund established in KRS 95A.220 to be used by the commission to conduct training-
16 related activities.

17 (16) If funding is available from the fund established in KRS 95A.220, the Kentucky
18 Fire Commission may implement the following:

19 (a) A program to prepare emergency service personnel for handling potential
20 man-made and non-man-made threats. The commission shall work in
21 conjunction with the state fire marshal and other appropriate agencies and
22 associations to identify and make maps of gas transmission and hazardous
23 liquids pipelines in the state;

24 (b) A program to provide and maintain a mobile test facility in each training
25 region established by the Kentucky Fire Commission with equipment to
26 administer Comprehensive Physical Aptitude Tests (CPAT) to ascertain a
27 firefighter's ability to perform the physical requirements necessary to be an

1 effective and safe firefighter;

2 (c) A program to provide defensive driving training tactics to firefighters. The
3 commission shall purchase, instruct in the use of, and maintain mobile
4 equipment in each of the training regions, and fund expenses related to
5 equipment replacement;

6 (d) A program to annually evaluate equipment adequacy and to provide for
7 annual physical examinations for instructors, adequate protective clothing and
8 personal equipment to meet NFPA guidelines, and to establish procedures for
9 replacing this equipment as needed;

10 (e) A program to establish a rotational expansion and replacement program for
11 mobile fleet equipment currently used for training and recertification of fire
12 departments;

13 (f) A program to expand and update current emergency medical services,
14 emergency medical responder, emergency medical technician, advanced
15 emergency medical technician, and paramedic training and certification
16 instruction;

17 (g) A program to purchase thermal vision devices to comply with the provisions
18 of KRS 95A.400 to 95A.440; and

19 (h) A program to reimburse firefighters for out-of-pocket expenses for cancer
20 screenings. Reimbursements for screenings may be drawn from revenues
21 allocated to the Firefighters Foundation Program fund pursuant to KRS
22 42.190 and 136.392. The commission may promulgate administrative
23 regulations pursuant to KRS Chapter 13A to:

24 1. Establish a periodic cap and maximum on the reimbursement to the
25 firefighter seeking reimbursement;

26 2. Establish which cancer screening tests are eligible for reimbursement,
27 provided that only cancer screening tests approved by the United States

1 Food and Drug Administration for cancer detection in humans may be
2 reimbursed;

3 3. Determine eligibility requirements for participants, which in the
4 discretion of the commission may also include retired firefighters; and

5 4. Establish any other policy to effect the purposes of this program.

6 ➔Section 3. There is hereby appropriated to the Kentucky Community and
7 Technical College System Restricted Funds in the amount of \$3,924,000 in fiscal year
8 2025-2026 to be distributed to the Kentucky Fire Commission to support the following
9 projects:

10 (1) \$140,000 for infrastructure improvements at the Fire Academy of Kentucky;

11 (2) \$226,000 for an equipment storage building and \$160,000 for replacement of
12 a fire engine in District 2;

13 (3) \$40,000 for infrastructure improvements in District 3;

14 (4) \$160,000 for replacement of a fire engine in District 4;

15 (5) \$500,000 for site development in District 5;

16 (6) \$226,000 for an equipment storage building and \$180,000 for replacement of
17 a fire engine in District 7;

18 (7) \$200,000 for site development and \$90,000 for site security in District 9;

19 (8) \$750,000 for property purchase and development in District 11;

20 (9) \$160,000 for a fire engine purchase in District 12;

21 (10) \$226,000 for an equipment storage building in District 13;

22 (11) \$400,000 for a maintenance building and an equipment storage building in
23 District 14; and

24 (12) \$226,000 for an equipment storage building, \$170,000 for a fire engine
25 purchase, and \$70,000 for infrastructure improvements in District 15.

26 ➔Section 4. Whereas it is critical to protect citizens of the Commonwealth from
27 fire, explosion, or other similar hazards through services offered by local fire

- 1 departments, an emergency is declared to exist, and this Act takes effect upon its passage
- 2 and approval by the Governor or upon its otherwise becoming a law.